

CRIMES

YOU # MAY # HAVE # ALREADY # COMMITTED

1

Sharing and distributing MP3s

Extract songs from an audio CD to an MP3 or any other media format and it's a crime. The moment you distribute the MP3s or allow other users access to those files, you are in a bigger soup. In an office environment, your actions of ripping audio CDs and sharing MP3s can even get your employer into legal trouble.

6

Copying source code

Using code from a Web site for your own program is fine as long as you give proper credits. Again, in an office environment if you destroy or conceal source code, especially when it is required to be maintained under law, the lawmakers will throw the book at you.

2

Ripping movies

You can rent a VCD and watch it on your office computer, but don't think about ripping the VCD and creating a DivX movie out of it. DivX, per se, is not illegal, but creating DivX movies is.

There are many digital crimes you can commit unknowingly. Read on and see—**Are you a Criminal?**

7

Disregarding copyright

It's very easy to cut and paste from Web sites, but browse down in the page and you will see a copyright notice. Unless it's specifically mentioned that the content on the site is free, you cannot copy content, images or presentations from Web sites.

3

Illegal downloading

So what if Napster, Audiogalaxy or similar sites provide the service to search for MP3s or movies. You cannot download them unless you have legally paid for the songs or movies to be downloaded in that specified format or unless the songs/movies are free for download. This is one of the major crimes most of us are unknowingly guilty of.

8

Deleting files in Office

If a person without appropriate permission from the user or network administrator downloads, copies or extracts any data or information from the office system or deletes or damages such data, he is violating the Information Technology Act, 2000. You are liable to pay compensation to the extent of Rs 1 crore.



Crime and Punishment

Most of the crimes listed are due to an infringement of The Copyright Act, 1954 (and subsequent amendments made in 1994/95) and The Indian Information Technology Act, 2000. The sentence for these may extend to three years with fine which shall not be less than Rs 50,000 but which may extend to Rs 200,000.

4

Pirating software

When you buy an assembled PC, you get a lot of software goodies. But unless you have specifically paid for the software and have the license for it, you are committing piracy. Using a licensed copy of software on more computers than what the license permits is also a crime. You are also not allowed to distribute games or software.

9

Hacking

Proud of your hacking/cracking skills? Change a user's password and restrict his access to a network (or Internet) or a PC, use credit card numbers for purchases without the knowledge of the owner, distribute viruses—then you're surely on the wrong side of the law.

5

Using a software crack

Taking the software demos or time-limited versions available on the Internet or from CDs and using cracks or passwords to make the software fully-functional isn't the right thing to do.

10

Publishing/sharing porn

Even though you can watch porn over the Net, the moment you distribute and share it over a network, you are entering the dark world of crime. The law on this may make for amusing reading ("whoever publishes....any material which is lascivious or appeals to the prurient interest..."), but the law-upholders take this matter quite seriously.